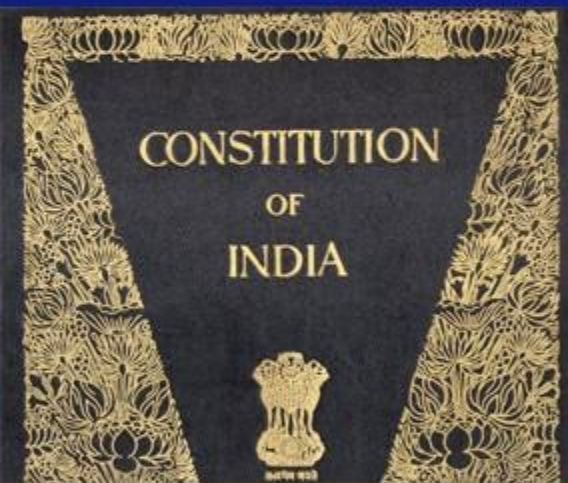


INDIAN POLITY



MODULE - 3

- ### THE HISTORICAL BACKGROUND
- CHARTER ACTS OF 1813, 1833 AND 1853

CHARTER ACT OF 1813

The British traders demanded entry to the ports of Asia and remove the monopoly of the EIC. The Controversy was resolved by this Act by allowing the British merchants to trade with India.

FEATURES OF THE ACT

- 1 It ended the monopoly of EIC in India. However the company's monopoly in trade with China and trade in tea with India was kept intact.
- 2 It granted permission to the Christian missionaries for promoting their religion.
- 3 It provided for a sum of Rs 1 lakh for the promotion of the knowledge of Sciences among the inhabitants of the British territories in India.

ANALYSIS OF THE CHARTER ACT OF 1813

- 1 By this Act, the trade monopoly of the Company in India was ended and trade with India was thrown open to all British subjects.
- 2 But the trade in tea and trade with China were still exclusive to the Company.
- 3 The Government and the revenues of India continued to be in the hands of the Company.
- 4 The Company also continued to appoint its officials in India.

CHARTER ACT OF 1833

This Act was the final step towards centralization in British India

FEATURES OF THE ACT

- 1 It made the Governor General of Bengal as the Governor General of India and vested in him all military and civil powers.



Lord William Bentinck was the first Governor General of India

- 2 Thus, the Act created for the first time a Government of India having the authority over the entire territorial area possessed by the British in India.
- 3 It deprived the Governors of Bombay and Madras of their legislative powers
- 4 The Governor General of India was given exclusive legislative powers for the entire British India
- 5 The laws made under the previous Act were called as Regulations, while laws made under this act were called as Acts.

CHARTER ACT OF 1833

FEATURES OF THE ACT



The “Un-Indian Civil Services”: A meeting of Administrative Heads in Shimla, 1875

- 5** It ended the activities of the East India Company as commercial body, which became a purely administrative body.
- 6** It attempted to introduce a system of open competition for selection of Civil Servants and employment stated that they should not be debarred from any office under the company. However, this provision was negated after the opposition from the court of directors

CHARTER ACT OF 1833

ANALYSIS OF THE ACT



Macaulay- 1st Law Commission established

- 1 The provision of **Governor General of India** was a clear indication towards **consolidation and centralization** of the administration in India.
- 2 The superintendence, direction and control of civil, military and revenue affairs of all the British territories in India was vested in the “Governor General of India and his Council”.
- 3 The Act made an **attempt to admit Indians into Civil Services**.
- 4 Codified the laws for the first time under **Lord Macaulay**.

CHARTER ACT OF 1833

ANALYSIS OF THE ACT



5 This Act brought the Company's monopoly of tea trade and trade with China to an end.

6 At the same time, the debts of the Company were taken over by the Government of India and the Government of India continued to be run by the Company under the strict control of the Board of Control.

CHARTER ACT OF 1833

ANALYSIS OF THE ACT

FIRST LAW COMMISSION

1. *First Law Commission* was established during the British era in 1834 by the Charter Act of 1833.
2. This was done for a *comprehensive examination* of the existing legal system prevailing in the British administered areas.
3. The first Law Commission was established under the chairmanship of *Lord Macaulay*.
4. The important recommendations made were
 - *Indian Penal Code*
 - *Criminal Procedure Code*
5. The first Law Commission of India was established in 1955 for a 3 year term under *M.C.Setalvad*, the first Attorney General of India.

UPSC PRELIMS 2003

Which one of the following provisions was not made in the Charter Act of 1833?

- a) The trading activities of the East India Company were to be abolished
- b) The designation of the supreme authority was to be changed as the Governor-General of India in Council
- c) All law-making powers to be conferred on Governor-General in Council
- d) An Indian was to be appointed as a Law Member in the Governor-General's Council

Answer: D

INDIAN POLITY

CHARTER ACT OF 1853

This was the last of the series of the Charter Acts passed by British Parliament between 1793 and 1853

FEATURES OF THE ACT

WHAT DO YOU MEAN BY THE INDIAN LEGISLATIVE COUNCIL?

This is a legislative wing of the Governor General's Council, which functioned as Mini Parliament adopting the same procedures as the British Parliament.

*Thus, the **legislation for the first time was treated as special function** of the Government requiring special machinery and processes*

- 1** It separated for the first time the legislative and executive functions of Governor General Council.
- 2** It provided for addition of 6 new members called the **Legislative Councilors** to the Council.
- 3** In other words it established a separate Governor General's Legislative Council which came to be known as the **Indian Legislative Council**.

CHARTER ACT OF 1853

FEATURES OF THE ACT

**WHAT DO YOU MEAN BY
COVENANTED CIVIL SERVICES?**

The Civil Services of the company were classified into covenanted and non-covenanted civil services. Higher grade of Civil services was termed as Covenanted Civil services. This was created by law of company while the non-covenanted posts do not require a law

- 4 It introduced an open competition system of selection and recruitment of civil servants. The covenanted Civil services was thus thrown open to the Indians also.
- 5 Accordingly, the Macaulay committee was appointed in 1854.
- 6 It extended the company's rule and allowed it to retain the position of Indian territories on trust for the British Crown.

CHARTER ACT OF 1853

FEATURES OF THE ACT



- 7 But, it **did not specify any particular period** for the Company rule unlike the previous charters.
- 8 It introduced, for the first time, **local representation in the Indian Legislative Council**. Of the six new legislative members, four members were appointed by the local (provincial) Governments of Madras, Bombay, Bengal and Agra.

CONCLUDING REMARKS ON CHARTER ACTS

- 1 Thus, the various acts of Parliament discussed above **completely subordinated the company** and its Indian administration to the British Government.
- 2 At the same time it was recognized day-to-day administration of India could not be run or even superintended from a distance of 6,000 miles.
- 3 The **three seats of authority** as far as India was concerned, were the Court of Directors of the company, the Board of Control representing the British Government and Governor General.
- 4 It is to be noted that Indians were allowed **no share in any of these three institutions**.
- 5 The chief aim of the British Administration was to enable them to **exploit India economically to the maximum advantage of various British interests**.
- 6 At the same time , India was to be made to bear the **full cost of its own conquest as well as of the foreign rule**.

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